

Calendar Line 2**Case Name:** *Balbinder Kaur v. General Motors, LLC***Case No.:** 24CV434201**PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS**

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the motion is untimely and that the fees requested are excessive and based on templated work.

I. Timeliness

Defendant contends the motion is untimely under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644. Defendant argues that the 180 day period to file and serve the motion began 45 days after the May 15, 2025 settlement. Defendant relies on *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155) in support of its position that settlements serve as judgments. The court is not persuaded that this motion violates statutory deadlines. *Hatlevig* tied the 180 day deadline to the actual entry of dismissal. Because no dismissal has been entered in this case and the matter remains pending on the docket, the 180 period has not begun to run. (See California Rules of Court, rule 3.1702(b)(1)).

II. Reasonableness of Fees

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$28,161.50 in attorney's fees based on 51.6 hours of work, plus an additional 6.0 hours for reviewing Defendant's opposition, preparing a reply, and attending the hearing on this motion. Plaintiff also seeks \$1,487.33 in costs. Plaintiff requests hourly rates of \$695 for partner-level work performed by attorney David Barry, \$525 for associate-level work performed by attorney Debora Rabieian, and \$450 for attorney Brian Kim. In the June 16, 2026 reply brief, Plaintiff voluntarily reduced the total fees from the original \$32,609.50 in attorney's fees based on 64 total hours with 12.4 hours of anticipated time. Plaintiff concedes that the anticipatory time he billed for the motion exceeded the time spent. Plaintiff withdraws 6.4 hours at Mr. Barry's hourly rate of \$695 for a total amount of \$4,448.00 from his Motion for Attorneys' Fees and Costs.

Mr. Barry declares he has approximately 23 years of legal experience, with nearly 20 years concentrating in consumer protection and lemon law litigation. He notes that courts have previously approved hourly rates of \$675 (2024-2025) for his work across multiple California counties. Plaintiff contends the requested \$695 rate is reasonable because of rates awarded in the same market to attorneys with comparable experience, as well as the survey of billing rates.

Defendant argues the rates and hours are inflated, the case involved no novel or unique issues, and the matter resolved within approximately 14 months of filing. Defendant argues the court should adjust rates to \$595 for Mr. Barry, \$350 for mid-level associates, and \$300 for juniors, based on Santa Clara rates.

Having reviewed the moving papers, opposition, reply, declarations, and billing records submitted, the Court finds that the number of hours expended is generally reasonable in this routine Song-Beverly repurchase claim that resolved after approximately 14 months. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. The Court acknowledges that reductions by Plaintiff's counsel have already been made.

With respect to hourly rates, the Court finds that the requested hourly rate of \$695 for partner-level work exceeds the prevailing market rate in Santa Clara County for comparable consumer warranty litigation. While the Court recognizes Mr. Barry's experience in Song-Beverly matters, the Court finds \$550 per hour to be a reasonable rate for partner-level work and \$350 per hour to be a reasonable rate for associate-level work. These rates more closely reflect the prevailing market rates for comparable services in this community. Accordingly, the lodestar shall be recalculated.

With respect to costs, Plaintiff seeks recovery of \$1,487.33, but the memorandum of costs and supporting documentation currently submitted are insufficient to permit the Court to verify the amounts requested, including estimated court reporter fees and undocumented e-filing fees. Plaintiff shall resubmit documentation supporting the claimed costs, including receipts or other appropriate proof, with the proposed order.

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court sets the reasonable hourly rates at \$550 for partner-level work, and \$350 for associate-level work.
2. The Court will apply a reasonable reduction to the hours claimed, including the reduction of anticipated time to a maximum of 4.0 hours.
3. Plaintiff shall submit documentation supporting the claimed costs with the proposed order.

If no party contests this tentative ruling, the compensable time shall be reduced by one hour. The Court will adopt the foregoing rates and reductions and will award fees and costs in the recalculated amount.

Plaintiff shall prepare, serve, and submit a proposed order consistent with this ruling, including the recalculated fee award and supporting documentation for costs, accompanied by the necessary Forms EFS-020, within 7 days of the hearing.

Calendar Line 3-4

Case Name: *Richard Chamberlain v. Santa Clara Public Defender's Office, et al.*

Case No.: 25-CV-456689

Factual and Procedural Background

This is an action for excessive force, unlawful detention, and related claims brought by plaintiff Richard Chamberlain ("Plaintiff"), a self-represented litigant, against the Santa Clara Public Defender's Office, Santa Clara District Attorney's Office, and Campbell Police Department ("CPD") (collectively, "Defendants").

On October 30, 2025, Plaintiff filed the operative first amended complaint ("FAC") against Defendants alleging causes of action for:

- (1) Excessive Force;
- (2) Unlawful Detention;
- (3) Negligence;
- (4) Ineffective Assistance of Counsel; and
- (5) Civil Rights Violations (42 U.S.C. § 1983).

On December 2, 2025, defendant City of Campbell (erroneously sued as CPD) ("City") filed the motions presently before the court, a demurrer and motion to strike to the FAC. Plaintiff filed written oppositions. The City filed reply papers.

A further case management conference is also scheduled for August 19, 2026.

Self-Represented Litigants

Self-represented litigants "are held to the same standards as attorneys." (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 ["self-represented litigants are generally entitled to no special treatment"].) "[M]ere self-representation is not a ground for exceptionally lenient treatment." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, "exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Id.* at p. 985.)

Demurrer to the FAC

The City raises the following arguments in support of the demurrer to the FAC: (1) Plaintiff did not comply with the claim presentation requirement in the Government Tort Claims Act and thus his state tort claims are time-barred; (2) the FAC fails to allege a statutory basis for his claims against the City; (3) the FAC fails to state any valid cause of action; (4) the FAC is uncertain; and (5) the City, a public entity, is immune from suit for acts alleged in the FAC. In opposition, Plaintiff essentially concedes the defects raised on demurrer as he has offered to file a second amended complaint ("SAC") with the court. (See OPP at Ex. 1.) Thus, the court treats the opposition as a concession that the instant demurrer has merit and is therefore sustainable for reasons outlined by the City. As this is the first challenge to the pleadings, the court will provide Plaintiff an opportunity for leave to amend. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the

pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].) Should the City take issue with Plaintiff's SAC, it may file the appropriate pleading motion for demurrer, motion for judgment on the pleadings (after the filing of an answer), or dispositive motion for summary judgment or summary adjudication based on admissible evidence.

Consequently, the demurrer to the FAC is SUSTAINED in its entirety WITH 15 DAYS LEAVE TO AMEND.

Motion to Strike Prayer for Punitive Damages

Given the court's ruling on demurrer, the motion to strike the prayer for punitive damages is MOOT.

Disposition

The demurrer to the FAC is SUSTAINED in its entirety WITH 15 DAYS LEAVE TO AMEND.

The motion to strike the prayer for punitive damages is MOOT.

The December 9, 2026 hearing date on Plaintiff's motion for leave to file a SAC is hereby VACATED.

The court will prepare the Order.

- oo0oo -

Calendar Line 5-6

Case Name: *Roy Toledo v D.H. Smith Company, Inc.*

Case No.: 25CV460503

PLAINTIFF'S MOTION FOR MONETARY SANCTIONS

[Plaintiff's requests for a protective order and appointment of a discovery referee have been withdrawn. The sole remaining issues are Plaintiff's requests for monetary sanctions pursuant to Code of Civil Procedure sections 2023.030 and 128.5.]

The Court previously considered the circumstances surrounding the parties' January 23, 2026 deposition dispute in connection with Defendant's motion to compel further deposition testimony. In its April 8, 2026 order, the Court reviewed the deposition excerpts and correspondence submitted by the parties, found that the deposition had become unnecessarily contentious, noted that certain commentary by examining counsel contributed to the escalation of the dispute, granted Defendant's motion to compel completion of Plaintiff's deposition, and denied Defendant's request for sanctions.

I. Request for Sanctions Under Code of Civil Procedure Section 2023.030

Code of Civil Procedure section 2023.030 authorizes sanctions for misuse of the discovery process. Misuses of the discovery process include, among other things, employing a discovery method in a manner that causes unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2023.010, subd. (c).)

Plaintiff contends that defense counsel engaged in a pattern of hostile and demeaning conduct throughout discovery, including argumentative deposition questioning, sarcastic and condescending communications, mischaracterizations concerning deposition scheduling, and repeated accusations that Plaintiff and counsel were attempting to delay or obstruct discovery. Plaintiff points to, among other things, defense counsel's references to opposing counsel's "shenanigans," an email offering to provide "wi-fi and coffee and bagel" if counsel arrived early, comments regarding a purported "delay, derail and prevent strategy," and statements made during deposition proceedings that Plaintiff characterizes as belittling, intimidating, or unnecessarily combative.

The Court does not condone discourteous, sarcastic, argumentative, or condescending conduct during discovery. Counsel are expected to conduct themselves in accordance with the California Attorney Guidelines of Civility and Professionalism and the Santa Clara County Bar Association Code of Professionalism. As recognized in *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1015, depositions should be conducted in a professional manner free from harassment and intimidation.

The Court's concern regarding the tone of certain communications and deposition exchanges does not end the analysis. The issue before the Court is whether the conduct satisfies the statutory standards for monetary sanctions. On this record, the Court concludes it does not.